



Delaware County Commissioners July 20th 2020

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=kbzbsHqLRvE
Publication Date	2020-07-20T18:31:16Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Summary

Date: July 20, 2020

Meeting Start Time: 00:00:13

Body: Delaware County Commissioners

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the meeting to order at 00:00:19 on Monday, July 20, 2020, opened with the Pledge of Allegiance.
- **Attendance:**
 - **Members Present:** Mr. Kane (Commissioner King), Mr. Henry, Mr. Burton (Commissioner Regan / referred to interchangeably in roll calls).
 - **Presiding Officer:** Not explicitly designated by a single title, but managed by the board commissioners collectively.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opened with the Pledge of Allegiance 00:00:23.
- **Approval of Minutes:**

- Approval of the July 6, 2020 meeting minutes and July 15, 2020 special meeting minutes 00:00:59.
- An amendment was also made to the June 15, 2020 minutes to add the word "timber" 00:03:18.
- **Action & Vote Disposition:** Approved by roll call vote (Miss Regan: Yes, Mr. King: Yes, Mr. Henry: Yes).

4. Substantive Business & Board Action

- 00:02:07 **Contracts and Agreements for Approval: G&P Consulting Contract (Bridge 161)**
 - **Sponsor / Presenter:** Staff / Legal.
 - **Deliberation Summary:** Review of the consulting contract for bridge 161; noted no real changes and found acceptable.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
- 00:04:13 **Subdivision Plat: National Land Surveyor (Slaven Subdivision)**
 - **Sponsor / Presenter:** Kathy, National Land Surveyor (325 West Washington Street, Muncie, IN).
 - **Deliberation Summary:** Presentation of a one-lot subdivision plat called the Slaven Subdivision on County Road 400 to dedicate road right-of-way frontage. Noted flooding approvals and a variance regarding a reduced front setback for the existing house.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. King: Yes, Miss Regan: Yes).
- 00:05:14 **Grant Application: Body Scanner and Portable X-Ray Scanner**
 - **Sponsor / Presenter:** Jeff Stanley, Chief Deputy of the Sheriff's Office.
 - **Deliberation Summary:** Requesting approval to apply for a 100% reimbursable federal CARES Act grant to purchase a brand new body scanner (\$139,000) for the new Justice Center, alongside a movable portable x-ray system. Commissioners discussed funding availability and agreed to approve subject to locating/identifying the funds for initial purchase prior to federal reimbursement.
 - **Action & Vote Disposition:** Approved subject to locating funds by roll call vote (Miss Regan: Yes, Mr. Henry: Yes, Mr. King: Yes).
- 00:08:15 **Professional Services Contract: Dossett Consulting**
 - **Sponsor / Presenter:** County Auditor's office / Staff.
 - **Deliberation Summary:** Renewal of a professional services contract with Jeff Dossett (former Montgomery County auditor) to assist the auditor's office with tracking down missed reimbursements. Noted a slight rate adjustment.

- **Action & Vote Disposition:** Approved by roll call vote (Miss Regan: Yes, Mr. King: Yes, Mr. Henry: Yes).
- **00:09:42 New Job Description: Chief Information Officer and GIS Coordinator**
 - **Sponsor / Presenter:** County EMA / Commissioners.
 - **Deliberation Summary:** Discussion surrounding Kyle (from EMA) who managed COVID-19 hub sites and digital public communications. The board approved a new job description combining Chief Information Officer and GIS Coordinator duties. To offset the vacated GIS parcel technician position during a hiring freeze, funds will be reallocated to hire a third party for parcel maintenance duties.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
- **00:14:38 Grant Application: State Justice Institute Grant**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Requesting permission to apply for a \$50,000 State Justice Institute grant to expand the eviction mediation program (funding mediators, administration, and partner agency PathStone) specifically targeting tenants facing evictions.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
- **00:16:09 Emergency Declaration Extension: Order 2020-EX-14**
 - **Sponsor / Presenter:** Legal Counsel / County Attorney.
 - **Deliberation Summary:** Continuation of the local emergency declaration aligning with Governor Holcomb's Executive Order (20-36/20-32) extending the public health emergency through August 3rd. Reaffirms requirements for social distancing (6 feet) and mandatory face masks for employees and the public inside county buildings.
 - **Action & Vote Disposition:** Approved by roll call vote (Miss Regan: Yes, Mr. King: Yes, Mr. Henry: Yes).
- **00:18:17 Ordinance 2020-009: Amending Delaware County Comprehensive Zoning Ordinance**
 - **Sponsor / Presenter:** Marta (Planning Commission).
 - **Deliberation Summary:** Second reading of an ordinance amending the zoning code to: (1) exempt non-commercial family cemeteries from the standard 10-acre minimum cemetery requirement in farm zones, and (2) define and permit agri-tourism in farm zones, requiring special event registration with the commissioners for events hosting over 50 people (to ensure sanitary/portable toilet provisions and coordinate emergency services).
 - **Action & Vote Disposition:** Adopted by roll call vote on second reading (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
- **00:25:02 Ordinance 2020-010: Grant Fund Establishment (Problem-Solving Court)**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.

- **Deliberation Summary:** Introduction of an ordinance to establish a fund for a juvenile court problem-solving grant. Held for a first reading; second reading scheduled for August 3rd.
 - **Action & Vote Disposition:** Introduced by roll call vote (Miss Regan: Yes, Mr. King: Yes, Mr. Henry: Yes).
 - **00:26:18 Ordinance 2020-011: Grant Fund Establishment (PPE Supplies)**
 - **Sponsor / Presenter:** Emily Anderson / Courts.
 - **Deliberation Summary:** Ordinance to establish a \$58,000 fund for a PPE supply grant received by Jason Rogers for the courts. Rules were suspended to allow immediate adoption so pending expense reimbursements could be processed.
 - **Action & Vote Disposition:**
 - Introduced by roll call vote (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
 - Rules suspended by roll call vote (Miss Regan: Yes, Mr. King: Yes, Mr. Henry: Yes).
 - Adopted by roll call vote (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
 - **00:27:51 Resolution 2020-030: Commitment to Equal Treatment and Addressing Systemic Racism**
 - **Sponsor / Presenter:** Legal Counsel / County Commissioners.
 - **Deliberation Summary:** Resolution declaring that all people are entitled to basic human rights, affirming the county's commitment to eliminating disparities based on race, religion, sexual orientation, gender, and national origin. Commits the county to reviewing policies and decisions involving employees, contractors, and vendors. Commissioners requested that this resolution be formally incorporated as a section in the county personnel handbook.
 - **Action & Vote Disposition:** Approved by roll call vote (Miss Regan: Yes, Mr. King: Yes, Mr. Henry: Yes). Additional motion to add to the personnel handbook approved by roll call vote (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
 - **00:31:41 Department Head Report: Highway Department Truck Donation**
 - **Sponsor / Presenter:** Robert Jesse, Delaware County Highway Department.
 - **Deliberation Summary:** The Highway Department retired an older bucket truck (used for light bulbs and maintenance). The Town of Selma expressed interest in acquiring it to service light bulbs and assist other small towns.
 - **Action & Vote Disposition:** Approved by roll call vote to donate the bucket truck to the Town of Selma (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes).
 - **00:35:08 Monthly & Weekly Reports / Claims**
 - **Sponsor / Presenter:** Auditor's Office / Staff.
 - **Deliberation Summary:** Review of weekly/monthly reports and claim payments totaling \$3,556,170.42.
 - **Action & Vote Disposition:** Approved payment of claims by roll call vote (Miss Regan: Yes, Mr. King: Yes, Mr. Henry: Yes).
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5. Open Public Comment / Citizen Forum

- **00:35:56 Kevin Nolan (5408 North Moore Road):** Thanked the commissioners for funding implicit bias training for county employees and praised the board for passing a strong resolution addressing systemic racism. Emphasized the importance of examining neutral-seeming county policies for disparate racial impacts and suggested partnering with Ball State University experts to analyze local criminal justice data.
 - **00:39:43 Dr. Wendy Pazusky (Ball State Criminal Justice Department):** Commended the board for unanimously adopting the anti-racism resolution and incorporating it into the personnel handbook. Offered academic support to examine local criminal justice data (bail settings, charging decisions, and probation/parole revocations) through regular annual reviews.
 - **00:43:17 Cameron Grubbs:** Commended Kyle and the GIS department (specifically mentioning Brian Preston) for transparency and communication. Thanked the commissioners for the anti-racism resolution, suggested exploring a human rights commission, and noted historical racist housing covenants found in local property plats. Urged the county to proactively prepare for potential statewide mask mandates.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Mention of ongoing coordination regarding upcoming meetings and public health guidelines.
 - **Adjournment:** Motion to enter recess entertained and approved by roll call vote (Mr. King: Yes, Miss Regan: Yes, Mr. Henry: Yes). Meeting placed in recess.
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